Little Guy Legal — Case Research Report

AI-Assisted Legal Research — For Attorney Review

Case: Brazos Bend Coffee Roasters v. Ridgmar Crossing Partners (synthetic acceptance)

Case identifier: case_6cbb9e3973549b897e861eb77af7227b

Report rpt_7b77154098f39d0aeff136d288f6cf8e — version 1 — generated 2026-10-31T20:52:16+00:00

Jurisdiction: Texas (statewide law) — County: Tarrant — Matter type: commercial_lease

Review status: APPROVED

TEST FIXTURE REPORT: generated with the scripted test provider. Content is canned test data, not model output.

1. Scope and Important Limitations

- This report was produced by software using locally hosted AI models and is not legal advice. Little Guy Legal is not a law firm and does not represent any party.
- No licensed attorney has reviewed this report unless a separate attorney review is expressly documented. Approval by the operator confirms only that the report was reviewed for completeness and obvious errors.
- Legal authorities are drawn from a local library of Texas statutes. Verification confirms citations match stored text; it does not confirm that an authority is current, remains good law, or governs these facts.
- Statements are classified as documented facts, user allegations, inferences, or unverified claims. Unverified items should be treated as open questions for counsel.
- The analysis does not predict the outcome of any dispute and does not estimate probabilities of success.
- TEST FIXTURE: this report was generated with the scripted test provider. Its analytical content is canned test data, not model output.
- Analysis caveat: All dates in the email chain come from a Tenant-printed compilation; original message headers were not provided.
- Analysis caveat: The authority library contains statutes only. Case law interpreting independent-covenant clauses and the scope of Section 93.002(h) was not available for verification.

2. Executive Summary

Brazos Bend Coffee Roasters (Tenant) was locked out of Suite 140 at Ridgmar Crossing on August 26, 2025 after withholding August rent to recover an $8,400 rooftop HVAC compressor replacement. The documents show (1) the lease expressly forbids withholding or offsetting rent even if the landlord is in breach; (2) the lease is genuinely ambiguous about who must repair a rooftop HVAC unit that serves only this suite; (3) the landlord's agent demanded a $1,500 'lockout and administrative fee' that appears nowhere in the lease, which Texas Property Code Section 93.012 prohibits and which may take the lockout outside the protection of Section 93.002; and (4) whether the landlord's notice of default was properly 'given' depends on a certified-mail receipt that is not in the file. The most time-sensitive question is whether to seek a writ of reentry in justice court under Section 93.003. Several conclusions are provisional pending the vendor invoice, proof of mailing, and the lease exhibits.

3. Case Background and Factual Timeline

Parties

- Ridgmar Crossing Partners, LP — landlord [D1:p1]
- Brazos Bend Coffee Roasters, LLC — tenant [D1:p1]
- Marisol Delgado-Pruitt — guarantor [D1:p1]

Facts (classified by basis)

Id	Statement	Basis	Evidence
F1	The lease term is sixty months commencing March 1, 2023 and expiring February 28, 2028.	documented	[D1:p1]

Id	Statement	Basis	Evidence
F2	Base Rent is $6,250.00 per month for months 1 through 36 and Tenant's estimated share of operating expenses is $1,100.00 per month.	documented	[D1:p1] [D1:p1]
F3	Landlord represented that the HVAC unit serving the Premises would be in good working order on the Commencement Date.	documented	[D1:p1]
F4	On June 10, 2025 Tenant emailed the property manager that the rooftop AC unit for Suite 140 had stopped cooling and asked for same-day service.	documented	[D3:para6]
F5	On June 20, 2025 the property manager reported the vendor's finding that the compressor on the 7.5-ton rooftop unit serving Suite 140 had failed, with a replacement estimate of $8,400, and took the position that Section 7.2 made it Tenant's responsibility.	documented	[D3:para18]
F6	On June 21, 2025 Tenant disputed responsibility by email, said it would proceed with replacement and expected reimbursement, and stated 'Consider this our written notice.'	documented	[D3:para24]
F7	Tenant states that the replacement was completed on June 27 and that it paid the vendor's $8,400 invoice on July 3, 2025. No invoice or proof of payment is in the file.	customer_allegation	[D3:para30]
F8	On August 1, 2025 Tenant did not pay August rent and operating expenses ($7,350) and instead applied the $8,400 repair cost against them by email.	documented	[D3:para30]
F9	Landlord's notice of default dated August 11, 2025 demanded $7,717.50 (rent, operating expenses, and a $367.50 late charge) within ten days and warned of a lock change under Property Code 93.002.	documented	[D2:para10] [D2:para12]
F10	The notice letter is captioned as sent via certified mail, return receipt requested, and electronic mail.	documented	[D2:para4]
F11	Tenant asserts it never received a certified letter and saw only the August 11 email attachment.	customer_allegation	[D3:para42]
F12	On the morning of August 26, 2025 Tenant found the locks changed and a posted notice giving a management name and telephone number for obtaining a new key.	documented	[D3:para42]
F13	Tenant reports being told a new key would be released only on payment of $7,717.50 plus a $1,500.00 lockout and administrative fee; Landlord's reply describes the fee as covering the locksmith and staff time.	documented	[D3:para42] [D3:para48]
F14	Landlord's principal states the notice was sent by certified mail on August 11 and that the ten-day cure period expired on August 21.	documented	[D3:para48]
F15	The lease requires an annual operating-expense reconciliation statement within 120 days after year end; no 2024 statement appears in the file.	documented	[D1:p2]
F16	The user's business is a coffee roaster and cafe that lost afternoon business during the cooling outage.	customer_allegation	[D3:para24]

Timeline

Date	Event	Basis	Evidence
2023-03-01	Lease commencement; HVAC represented to be in good working order.	documented	[D1:p1]
2025-06-10	Tenant reports rooftop AC failure by email.	documented	[D3:para6]
2025-06-12	Property manager dispatches vendor and asserts HVAC is a tenant item.	documented	[D3:para12]
2025-06-20	Vendor finds failed compressor; $8,400 estimate; Landlord cites Section 7.2.	documented	[D3:para18]

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Date	Event	Basis	Evidence
2025-06-21	Tenant disputes responsibility, proceeds with replacement, and declares written notice.	documented	[D3:para24]
2025-06-27	Replacement completed (per Tenant).	customer_allegation	[D3:para30]
2025-08-01	Tenant withholds August rent, applying $8,400 repair cost.	documented	[D3:para30]
2025-08-11	Landlord issues notice of default; ten-day cure demanded.	documented	[D2:para3]
2025-08-21	Cure period expires according to Landlord.	documented	[D3:para48]
2025-08-26	Tenant finds locks changed; $1,500 fee demanded for new key; Tenant demands re-entry.	documented	[D3:para42]

4. Key Lease Provisions

P1. Definition of Building Systems (Section 1.10) [D1:p1]

Building Systems are defined as the electrical, plumbing, mechanical, fire and life-safety, and HVAC systems serving the Building generally, including rooftop equipment, up to the point of connection to the Premises.

> “heating, ventilation, and air-conditioning systems serving the Building generally, including rooftop equipment, risers, and distribution lines up to the point of connection to the Premises” — D1:p1

Ambiguity: The definition includes 'rooftop equipment' but limits Building Systems to those serving the Building 'generally'. A rooftop unit that serves only Suite 140 arguably falls on either side of that line.

P2. Landlord repair obligation (Section 7.1) [D1:p2]

Landlord maintains roof, foundation, structural components, common areas, and the Building Systems, but is not liable for failure to repair unless Tenant gave written notice and Landlord failed to commence repairs within a reasonable time not exceeding 30 days.

> “Landlord shall maintain in good repair the roof, foundation, exterior walls, structural components of the Building, the common areas, and the Building Systems” — D1:p2

P3. Tenant repair obligation for HVAC exclusively serving the Premises (Section 7.2) [D1:p2]

Tenant must maintain, repair, and replace all HVAC equipment exclusively serving the Premises and keep a quarterly preventive maintenance contract.

> “all heating, ventilation, and air-conditioning equipment exclusively serving the Premises” — D1:p2

Ambiguity: Sections 1.10, 7.1 and 7.2 point in different directions for a rooftop unit that exclusively serves Suite 140. Section 2.2 separately represents the unit was in good working order at commencement.

P4. Tenant self-help and no offset (Section 7.4) [D1:p2]

If Landlord fails to repair within the required time, Tenant may give an additional ten days' written notice of intent to repair, then repair and invoice Landlord, payable within 30 days. The section expressly does not permit offset against Rent.

> “Nothing in this Section 7.4 permits Tenant to offset any such cost against Rent” — D1:p2

P5. Independent covenants; no withholding or offset (Section 4.4) [D1:p2]

Tenant's rent covenant is independent and Tenant may not withhold, abate, or offset Rent for any alleged Landlord default; Tenant's remedies are damages or injunctive relief.

> “Tenant shall not withhold, abate, or offset Rent on account of any alleged default by Landlord” — D1:p2

P6. Events of Default and ten-day cure after written notice (Section 15.1(a)) [D1:p4]

Failure to pay Rent becomes an Event of Default only if it continues for ten days after Landlord gives Tenant written notice.

> “Tenant fails to pay any Rent when due and such failure continues for ten (10) days after Landlord gives Tenant written notice thereof” — D1:p4

P7. Lock-change remedy tied to Property Code 93.002 (Section 15.2(c)) [D1:p4]

Upon an Event of Default Landlord may change door locks in accordance with Texas Property Code Section 93.002 and must post a notice with the name and address or telephone number of the person from whom a new key may be obtained.

> “change the door locks of the Premises in accordance with Section 93.002 of the Texas Property Code” — D1:p4

P8. Notices must be written and delivered by hand, courier, or certified mail; email is not notice (Sections 17.1 and 17.2) [D1:p4]

Notice is deemed given on personal delivery, one business day after overnight courier, or three business days after certified mailing. Email does not constitute notice unless the recipient acknowledges receipt in a written reply.

> “Communications sent by electronic mail are for convenience only and shall not constitute notice under this Lease unless the receiving party expressly acknowledges receipt in a written reply” — D1:p4

Ambiguity: Whether Tenant's August 26 email referring to 'the August 11 email attachment' is a written acknowledgment of receipt is debatable.

P9. Late charge (Section 4.3); attorneys' fees (Section 24.2); governing law and Tarrant County venue (Section 24.1) [D1:p2] [D1:p5]

Five percent late charge after five days; prevailing party recovers reasonable attorneys' fees; Texas law governs and venue lies exclusively in Tarrant County state courts.

> “Tenant shall pay a late charge equal to five percent (5%) of the overdue amount” — D1:p2
>
> “Venue for any action arising under this Lease shall lie exclusively in the state courts located in Tarrant County, Texas” — D1:p5

5. Relevant Legal Authorities

Tex. Prop. Code § 93.002 (binding; verified in local library)

Governs when a commercial landlord may exclude a tenant, permits lock changes for a tenant delinquent in paying at least part of the rent, prescribes the posted-notice content and the condition for providing a new key, and sets tenant remedies for violations. Subsection (h) lets the lease supersede the section to the extent of conflict.

> “A landlord may not intentionally prevent a tenant from entering the leased premises except by judicial process unless the exclusion results from”

Source: https://statutes.capitol.texas.gov/Docs/PR/htm/PR.93.htm (retrieved 2026-10-31)

Tex. Prop. Code § 93.003 (binding; verified in local library)

Provides the sworn complaint and writ of reentry procedure in justice court for a tenant locked out in violation of Section 93.002, with a hearing between the first and seventh day after the landlord requests one.

> “The tenant must file with the justice court in the precinct in which the rental premises are located a sworn complaint for reentry”

Source: https://statutes.capitol.texas.gov/Docs/PR/htm/PR.93.htm (retrieved 2026-10-31)

Tex. Prop. Code § 93.012 (binding; verified in local library)

Prohibits a landlord from assessing a charge, other than rent or physical damage, unless the amount or method of computation is stated in the lease, an exhibit, or an amendment. Relevant to the $1,500 lockout and administrative fee.

> “A landlord may not assess a charge, excluding a charge for rent or physical damage to the leased premises, to a tenant unless the amount of the charge or the method by which the charge is to be computed is stated in the lease”

Source: https://statutes.capitol.texas.gov/Docs/PR/htm/PR.93.htm (retrieved 2026-10-31)

Tex. Prop. Code § 93.005 (binding; verified in local library)

Requires refund of a commercial security deposit within 60 days after surrender and notice of forwarding address; relevant if the lease is terminated.

> “The landlord shall refund the security deposit to the tenant not later than the 60th day after the date the tenant surrenders the premises”

Source: https://statutes.capitol.texas.gov/Docs/PR/htm/PR.93.htm (retrieved 2026-10-31)

Tex. Prop. Code § 91.004 (binding; verified in local library)

Makes a landlord liable to a non-defaulting tenant for damages from the landlord's failure to comply with the lease; the 'not in default' condition is contested here.

> “If the landlord of a tenant who is not in default under a lease fails to comply in any respect with the lease agreement, the landlord is liable to the tenant for damages resulting from the failure”

Source: https://statutes.capitol.texas.gov/Docs/PR/htm/PR.91.htm (retrieved 2026-10-31)

Tex. Prop. Code § 24.005 (binding; verified in local library)

Sets notice-to-vacate requirements if Landlord pursues an eviction suit rather than, or in addition to, self-help remedies.

Source: https://statutes.capitol.texas.gov/Docs/PR/htm/PR.24.htm (retrieved 2026-10-31)

Tex. Civ. Prac. & Rem. Code § 38.001 (binding; verified in local library)

Permits recovery of reasonable attorney's fees on a claim for an oral or written contract, in addition to the lease's own prevailing-party clause.

> “an oral or written contract”

Source: https://statutes.capitol.texas.gov/Docs/CP/htm/CP.38.htm (retrieved 2026-10-31)

Texas common law on dependent versus independent covenants and the effect of 'independent covenant' clauses (unverified; NOT in local library — unverified)

Whether a tenant may ever withhold rent for a landlord's repair breach despite an independent-covenant clause is governed by Texas case law not contained in the local library.

Texas Rules of Civil Procedure, Part V (justice court rules) including the eviction and reentry procedures (unverified; NOT in local library — unverified)

Procedural rules for a sworn complaint for reentry and any eviction suit; not in the local library.

6. Main Legal Issues

M1. Was the lockout carried out lawfully? [A:tx-prop-93.002] [D3:para42]

Texas law allows a commercial landlord to change the locks of a tenant who is behind on rent, but only if it posts a notice saying where a new key can be obtained and provides the key when the tenant pays the delinquent rent. The lease adopts that statute. Tenant's record indicates the key was conditioned on an extra $1,500 fee.

Customer position: The extra fee condition took the lockout outside the statute; Tenant may recover possession or terminate and recover damages, the greater of one month's rent or $500, fees and costs.

Opposing position: Tenant was delinquent, the lease authorized the lock change, the posted notice was proper, and the fee was a separate matter.

Current assessment: Currently favors the customer on the fee condition, but the proof is an email account of a phone call; the reviewer flagged the need for a photograph of the notice and any written key demand.

M2. Can the landlord charge the $1,500 fee? [A:tx-prop-93.012]

Section 93.012 bars charges other than rent or physical damage unless the lease (or an exhibit or amendment) states the amount or how it is computed. The lease in the file lists only a 5% late charge and attorneys' fees.

Customer position: The fee is unenforceable and should not be a condition of access.

Opposing position: The fee is a recoverable cost or damage item preserved by Section 93.012(b).

Current assessment: Favors the customer, subject to review of Exhibits B and C, which are not in the file.

M3. Who had to repair the rooftop HVAC unit? [D1:p1] [D1:p2]

The lease defines Building Systems (Landlord's job) to include rooftop HVAC equipment serving the building generally, but separately makes Tenant responsible for HVAC equipment exclusively serving the suite. A rooftop unit dedicated to Suite 140 fits both descriptions.

Customer position: Rooftop equipment is a Building System; Landlord warranted the unit at commencement and refused to repair, so Tenant may recover the $8,400.

Opposing position: The specific clause on equipment exclusively serving the suite controls; Tenant also never produced the required maintenance contract.

Current assessment: Unclear. The skeptical review found both advocates overstated their reading. The vendor invoice and report, and any maintenance records, are needed.

M4. Was Tenant allowed to withhold August rent? [D1:p2]

Two lease clauses say rent may not be withheld or offset for any landlord default, and the self-help clause requires an invoice rather than a deduction.

Customer position: The repair was Landlord's duty and the withholding was a reasonable response to its refusal.

Opposing position: Offset is flatly prohibited; Tenant's remedy was to invoice Landlord and sue for damages if unpaid.

Current assessment: Favors the opposing party. Whether Texas case law ever overrides an express independent-covenant clause is a question for counsel; no such authority is in the local library.

M5. Had a lease Event of Default matured before August 26? [D1:p4] [D3:para42]

The lease requires written notice (by hand, courier, or certified mail; email does not count unless acknowledged in writing) and a ten-day cure before non-payment becomes an Event of Default that triggers lease remedies.

Customer position: No certified letter was received; email was not notice; the cure period never started.

Opposing position: The letter was mailed certified on August 11; the lease deems notice given three business days after mailing; the cure period expired before the lock change.

Current assessment: Unclear and entirely dependent on proof of mailing, which is not in the file. The statutory lock-change right does not depend on these lease mechanics.

Open legal questions identified

- Q1: Is the rooftop HVAC unit serving only Suite 140 a 'Building System' under Section 1.10 (Landlord's duty) or 'HVAC equipment exclusively serving the Premises' under Section 7.2 (Tenant's duty)? — Determines who bears the $8,400 replacement cost and whether Landlord breached Section 7.1.
- Q2: Did Tenant's June 21 email satisfy the written-notice and additional ten-day notice requirements of Sections 7.1 and 7.4, given Section 17.2's rule that email is not notice? — Tenant's reimbursement claim under Section 7.4 depends on proper notice.
- Q3: Was Tenant entitled to offset the repair cost against August rent, given Sections 4.4 and 7.4? — If offset was prohibited, Tenant was delinquent and Landlord's remedies may have been triggered.
- Q4: Was Landlord's August 11 notice 'given' under Section 17.1, and did an Event of Default under Section 15.1(a) exist before the lock change? — The lease ties the lock-change remedy to an Event of

Default, which requires written notice and ten days.

- Q5: Did the lock change comply with Texas Property Code Section 93.002(c)(3) and (f), including the posted-notice content and conditioning the new key on payment of only delinquent rent? — A non-compliant lockout exposes Landlord to the remedies in Section 93.002(g) and a writ of reentry under Section 93.003.
- Q6: May Landlord assess the $1,500 'lockout and administrative fee' when no such charge is stated in the lease? — Section 93.012 prohibits charges not stated in the lease, exhibits, or amendments.
- Q7: What are Tenant's obligations and risks regarding the security deposit and the missing 2024 operating-expense reconciliation? — Affects the net amounts in dispute and Tenant's audit rights under Section 9.3.

7. Arguments Supporting the Customer's Position

Argument style: by the book

C1. The lockout violated Property Code Section 93.002 because the new key was conditioned on a fee that is not delinquent rent — confidence: moderate [D3:para42] [A:tx-prop-93.002]

Section 93.002(f) requires that a new key be provided during business hours if the tenant pays the delinquent rent. Landlord's agent conditioned the key on payment of $7,717.50 plus a $1,500 'lockout and administrative fee' that appears nowhere in the lease. Conditioning re-entry on a non-rent charge is outside what the statute permits, which would make the exclusion unlawful and trigger the remedies in Section 93.002(g): recovery of possession or termination, actual damages, the greater of one month's rent or $500, attorney's fees, and costs, less sums owed.

Relies on: facts F12, F13; provisions P7; authorities tx-prop-93.002, tx-prop-93.012

Assumptions: The telephone statement about the fee can be proven (Tenant's contemporaneous email is the only record).

Evidentiary weaknesses: The posted notice itself appears to have included a name and telephone number, which satisfies the posting requirement in subsection (f).; Section 93.002(h) allows the lease to supersede the statute to the extent of conflict; Landlord will argue Section 15.2 governs.

Anticipated counterarguments: Landlord may say the fee was a separate demand and the key was available upon payment of rent alone.; Landlord may argue Tenant was delinquent in 'at least part of the rent', so the exclusion itself was permitted.

Confidence rationale: The fee demand is documented in Tenant's own email and confirmed in substance by Landlord's reply, but the exact condition for release of the key rests on an oral exchange.

C2. The $1,500 lockout and administrative fee is barred by Property Code Section 93.012 — confidence: high [A:tx-prop-93.012] [D3:para48]

Section 93.012(a) prohibits a landlord from assessing any charge other than rent or physical damage unless the amount or computation method is stated in the lease, an exhibit, or an amendment. The lease sets a 5% late charge in Section 4.3 and attorneys' fees in Section 24.2 but contains no lockout, locksmith, or administrative fee. The charge is therefore unenforceable.

Relies on: facts F13; provisions P9; authorities tx-prop-93.012

Assumptions: No amendment or exhibit (other than the unreviewed Exhibit C guaranty) adds such a fee.

Evidentiary weaknesses: Exhibit B (Rules and Regulations) and Exhibit C were not fully reviewed; a fee schedule could exist there.

Anticipated counterarguments: Landlord may characterize the fee as damages or costs recoverable under Section 15.2(d) or common law rather than a 'charge'. Section 93.012(b) preserves statutory and common-law remedies.

Confidence rationale: The statutory text is direct and the lease contains no such fee; the main uncertainty is the exhibits not in the file.

C3. No Event of Default existed when the locks were changed because written notice was not given in the manner the lease requires — confidence: low [D1:p4] [D3:para42]

Section 15.1(a) requires written notice and a ten-day cure before a payment failure becomes an Event of Default, and Section 15.2 allows a lock change only 'upon an Event of Default'. Under Section 17.1 notice is given by personal delivery, overnight courier, or certified mail, and Section 17.2 says email is not notice unless receipt is acknowledged in a written reply. Tenant denies receiving the certified letter and Landlord has produced no receipt. If notice was given only by email, the cure period never started and the lock change on August 26 was premature under the lease itself.

Relies on: facts F9, F10, F11, F14; provisions P6, P7, P8

Assumptions: Landlord cannot produce a certified mail receipt or tracking showing mailing on or about August 11.

Evidentiary weaknesses: If Landlord mailed the notice on August 11, Section 17.1 deems it given three business days later regardless of actual receipt, and ten days from then would still have run before August 26.; Tenant's own August 26 email refers to 'the August 11 email attachment', which Landlord may call a written acknowledgment under Section 17.2.

Anticipated counterarguments: Deemed-delivery under Section 17.1(c) does not depend on receipt.; Section 93.002(c)(3) permits a lock change for delinquency independent of lease notice provisions, subject to subsection (h).

Confidence rationale: The argument turns entirely on whether certified mailing occurred, which is unknown, and faces a deemed-delivery clause.

C4. Landlord bears responsibility for the rooftop HVAC unit as a Building System, entitling Tenant to reimbursement of the $8,400 — confidence: low [D1:p1] [D1:p1]

Section 1.10 defines Building Systems to include HVAC systems 'including rooftop equipment', and Section 7.1 makes Landlord responsible for Building Systems. Section 2.2 shows the parties treated the HVAC unit as something Landlord warranted at commencement. Reading the lease as a whole, the rooftop compressor is Landlord's to replace; Tenant gave written notice on June 10 and June 21, Landlord refused, and Tenant performed the repair. Tenant is entitled to reimbursement under Section 7.4 or damages under Section 91.004 and the lease.

Relies on: facts F3, F4, F5, F6, F7; provisions P1, P2, P3, P4; authorities tx-prop-91.004

Assumptions: The replaced unit sits on the roof and connects to the Premises through building distribution lines.; The June 21 email counts as written notice despite Section 17.2, or Landlord's June 12 and June 20 replies amount to written acknowledgment.

Evidentiary weaknesses: Section 7.2 specifically assigns 'HVAC equipment exclusively serving the Premises' to Tenant, and the vendor described the unit as 'serving Suite 140'.; Section 1.10 limits Building Systems to systems serving the Building 'generally'.; No invoice or proof of payment is in the file.; Section 7.4 required an additional ten days' written notice of intent to repair; Tenant acted within days.

Anticipated counterarguments: Specific provisions (7.2) control over general definitions (1.10).; Even if Landlord owed the repair, Section 7.4 and Section 4.4 bar offset against rent, so Tenant's remedy was an invoice and a damages claim, not withholding.

Confidence rationale: The lease language genuinely cuts both ways; the specific-controls-general canon and the 'exclusively serving' wording weigh against Tenant, and the notice procedure was not followed precisely.

Overall: Tenant's strongest, most conventional positions concern the manner of the lockout (the unauthorized fee and the key-release condition) rather than the underlying rent dispute. The HVAC responsibility argument is colorable but contested by specific lease text, and the offset was almost certainly prohibited by Sections 4.4 and 7.4 even if Landlord owed the repair.

8. Opposing Arguments

Argument style: by the book

O1. Tenant was delinquent in rent and the lock change was expressly authorized by the lease and Section 93.002(c)(3) — confidence: high [D1:p2] [A:tx-prop-93.002]

Tenant admits it paid nothing on August 1 and unilaterally 'applied' a disputed repair cost against rent. Section 4.4 forbids withholding or offset for any alleged Landlord default and Section 7.4 repeats that self-help costs may not be offset against Rent. A tenant delinquent in at least part of the rent may have its locks changed under Section 93.002(c)(3), and Section 15.2(c) of the lease adopts that remedy. Landlord posted a notice with a name and telephone number as both the lease and subsection (f) require.

Relies on: facts F8, F12, F14; provisions P5, P4, P7; authorities tx-prop-93.002

Assumptions: The posted notice stated the name and telephone number as described in Tenant's own email.

Evidentiary weaknesses: The $1,500 fee demand complicates the key-release condition in subsection (f).

Anticipated counterarguments: Tenant will argue the fee rendered the exclusion unlawful and that an Event of Default had not matured.

Confidence rationale: Non-payment is admitted in writing and the no-offset clauses are explicit.

O2. The rooftop unit is Tenant's responsibility under the specific language of Section 7.2 — confidence: moderate [D1:p2] [D3:para18]

Section 7.2 assigns to Tenant 'all heating, ventilation, and air-conditioning equipment exclusively serving the Premises' and requires a quarterly maintenance contract. The vendor identified the failed unit as the rooftop unit 'serving Suite 140'. Section 1.10 covers systems serving the Building 'generally'; a dedicated unit does not. A specific allocation controls over a general definition, and Tenant has never produced the maintenance contract the lease required, which bears on causation of an end-of-life compressor failure.

Relies on: facts F5; provisions P1, P3

Assumptions: The unit serves only Suite 140 (consistent with the vendor's description).

Evidentiary weaknesses: Section 1.10 expressly mentions 'rooftop equipment', and Section 2.2's commencement warranty suggests Landlord treated the unit as within its sphere at delivery.

Anticipated counterarguments: Tenant will read 'including rooftop equipment' as decisive and invoke the Section 2.2 representation.

Confidence rationale: The specific wording favors Landlord, but the definition's reference to rooftop equipment leaves real ambiguity.

O3. Even if Landlord owed the repair, Tenant forfeited reimbursement by skipping the Section 7.4 procedure and offsetting rent — confidence: high [D1:p2] [D3:para30]

Section 7.4 allows self-help only after Landlord fails to act within the Section 7.1 period and after an additional ten days' written notice of intent to repair, followed by an invoice payable in 30 days. Tenant announced on June 21 that it was proceeding immediately, never sent an invoice with supporting documentation, and instead deducted the amount from rent, which Section 7.4 and Section 4.4 prohibit. Tenant's email also was not 'notice' under Section 17.2.

Relies on: facts F6, F7, F8; provisions P4, P5, P8

Assumptions: No separate invoice or formal notice was sent beyond the emails in the file.

Evidentiary weaknesses: Landlord's own agents corresponded by email throughout, which Tenant may argue waived strict notice formalities or acknowledged receipt.

Anticipated counterarguments: Tenant may argue an emergency excused the waiting period and that Landlord's refusal made further notice futile.

Confidence rationale: The procedural steps in Section 7.4 are explicit and the email record shows they were not followed.

O4. Notice of default was properly given and the cure period expired before the lock change — confidence: moderate [D2:para4] [D1:p4]

The August 11 letter is captioned as sent by certified mail, return receipt requested, and Landlord's principal confirmed mailing on August 11. Under Section 17.1(c) notice is deemed given three business days after certified mailing regardless of receipt, so notice was given no later than August 14 and the ten-day cure ran out by August 24, before the August 26 lock change. Tenant's August 26 email acknowledging 'the August 11 email attachment' also supplies the written acknowledgment contemplated by Section 17.2.

Relies on: facts F9, F10, F14; provisions P6, P8

Assumptions: Landlord can produce the certified mail receipt.

Evidentiary weaknesses: No mailing receipt is in the file; Tenant denies receipt.; Landlord's own letter counted ten days from the letter date rather than from deemed delivery.

Anticipated counterarguments: Tenant will argue the burden to prove mailing is Landlord's and that absent proof the cure period never began.

Confidence rationale: Deemed-delivery language is favorable but proof of mailing is missing from the record.

Overall: Landlord's core position is simple: rent was unpaid, offset was contractually prohibited, and the lease plus Section 93.002 authorized a lock change. Landlord's exposure lies in the $1,500 fee and the condition placed on releasing the key, and in proving that notice was mailed.

9. Skeptical Analysis and Weaknesses

I1. Lawfulness of the August 26 lock change and the condition placed on a new key — currently stronger: customer [A:tx-prop-93.002]

Both sides agree Tenant paid no rent for August. That likely permitted an exclusion under Section 93.002(c)(3) and Section 15.2(c). The dispute narrows to the key-release condition: subsection (f) ties the new key to payment of the delinquent rent, and the only record (Tenant's email, substantially confirmed by Landlord's reply) shows a $1,500 fee was also demanded. If that is proven, the exclusion as conducted sits outside the statutory safe harbor. Landlord's fallback, that Section 93.002(h) lets the lease supersede the statute, is weakened because Section 15.2(c) incorporates Section 93.002 rather than displacing it.

Unsupported claims: C1's premise that Landlord 'conditioned' re-entry on the fee relies on an oral telephone exchange recorded only in Tenant's email.

Evidence gaps: Photograph of the posted notice; Any written statement from Landlord of what was required to obtain the key

Procedural concerns: The writ of reentry procedure in Section 93.003 is time-sensitive and requires a sworn complaint in the justice court for the precinct where the premises are located; justice court rules are not in the library.

I2. Whether the $1,500 lockout and administrative fee may be assessed — currently stronger: customer [A:tx-prop-93.012]

Section 93.012(a) is categorical for charges not stated in the lease. The lease specifies a late charge and attorneys' fees only. Landlord's best response is Section 93.012(b), preserving charges or remedies allowed by statute or common law, but a locksmith cost is more naturally a damages item to be proven than a charge to be imposed as a condition of access. Exhibits B and C were not reviewed and could change this.

Evidence gaps: Complete exhibits to the lease; Any amendment or fee schedule

I3. Responsibility for the rooftop HVAC unit and the $8,400 replacement — currently stronger: unclear [D1:p1] [D1:p2]

Section 7.2 ('exclusively serving the Premises') and Section 1.10 ('including rooftop equipment' but 'serving the Building generally') genuinely conflict for a dedicated rooftop unit. Both advocates overstate: C4 treats the Section 2.2 commencement warranty as an ongoing allocation, which it is not on its face; O2 treats 'serving Suite 140' as proof of exclusivity, which the vendor did not actually say. The missing maintenance contract and the end-of-life finding matter to causation. This is a classic ambiguity that a court may resolve with extrinsic evidence; it should be put to counsel.

Unsupported claims: C4: 'Tenant gave written notice on June 10 and June 21' assumes email is notice, contrary to Section 17.2.; O2: 'a dedicated unit does not' serve the Building generally is an inference, not something the lease says.

Evidence gaps: Mechanical drawings or vendor report showing what the rooftop unit serves; Any HVAC preventive maintenance contract; The Trinity Mechanical invoice and report

I4. Whether Tenant's withholding of August rent was permitted — currently stronger: opposing [D1:p2]

Sections 4.4 and 7.4 are explicit that Rent may not be withheld or offset for a Landlord default, and Section 7.4 prescribes invoice-and-pay rather than deduction. Tenant's argument would require Texas common law to override an express independent-covenant clause, and no authority for that is in the library. Even on Tenant's best view of the HVAC issue, the chosen remedy was the wrong one under the lease.

Unsupported claims: Any suggestion that an 'emergency' excused the no-offset clause lacks support in the lease text.

Evidence gaps: Case law on independent-covenant clauses in Texas commercial leases (not in library)

I5. Whether a lease Event of Default had matured before the lock change — currently stronger: unclear [D1:p4]

Everything turns on proof of certified mailing on or about August 11. If mailed, deemed delivery three business days later plus ten days expires on or about August 24, before August 26, and C3 fails. If not mailed, the only notice was email, Section 17.2 says email is not notice, and the cure period arguably never began. Tenant's August 26 reference to 'the August 11 email attachment' is a plausible but not certain written acknowledgment. Note the statutory lock-change right in Section 93.002(c)(3) does not itself depend on the lease's notice mechanics, so this issue affects lease remedies more than the statutory analysis.

Unsupported claims: O4's statement that Tenant's August 26 email 'supplies the written acknowledgment' is an interpretation, not a documented fact.

Evidence gaps: Certified mail receipt or tracking; Original email headers showing when the notice attachment was received

Procedural concerns: Section 17.1's deemed-delivery rule may shift the burden; counsel should assess who must prove mailing.

Unsupported interpretations

- C4: Treats Section 2.2's commencement-date representation as an allocation of ongoing repair responsibility; the clause speaks only to condition at delivery.
- C3: Assumes actual receipt is required for notice; Section 17.1(c) deems notice given three business days after certified mailing.
- O2: Infers that the unit serves only Suite 140 from the phrase 'serving Suite 140'; the vendor's report in the file does not say 'exclusively'.

- O1: Asserts the posted notice satisfied Section 93.002(f) without addressing that the key was conditioned on a fee beyond delinquent rent.

Conflicting provisions

- P1, P2, P3: Section 1.10 includes rooftop equipment in Building Systems (Landlord), while Section 7.2 assigns HVAC exclusively serving the Premises to Tenant. A dedicated rooftop unit fits both descriptions.
- P7, P6: Section 15.2(c) permits a lock change 'upon an Event of Default' (which requires notice and ten days), while the incorporated statute permits a lock change for mere delinquency. Which standard governs the August 26 action is unresolved.

The customer's position is strongest on how the lockout was carried out (the fee and the key condition) and weakest on the decision to withhold rent. The HVAC allocation is a genuine ambiguity on which reasonable readers differ. Several conclusions depend on documents not in the file, especially proof of mailing and the vendor invoice, and should be treated as open until those are produced.

10. Missing Documents and Unresolved Facts

- A rent ledger or bank records showing payments through July 2025 and whether any prior late payments were accepted.
- Any quarterly HVAC preventive maintenance contract required by Section 7.2, or confirmation none existed.
- Certified mail receipt or USPS tracking for the August 11, 2025 notice of default.
- Certified mail receipt or tracking for the August 11, 2025 notice.
- Exhibit C (Guaranty) is referenced but not in the file, so the guarantor's exposure cannot be assessed.
- Exhibits B (Rules and Regulations) and C (Guaranty) to the lease.
- HVAC preventive maintenance contract or records.
- Photograph or copy of the posted lockout notice and any written statement of what was required to obtain a key.
- Photographs of the posted lockout notice and the current status of access to the Premises.
- Rent payment ledger and the 2024 operating-expense reconciliation statement.
- The 2024 annual operating-expense reconciliation statement required by Section 9.2, or confirmation it was never delivered.
- Trinity Mechanical invoice and proof of the $8,400 payment (F7 rests on Tenant's email only).
- Trinity Mechanical invoice, service report, and proof of the $8,400 payment.
- [high] Certified mail receipt/tracking for the August 11, 2025 notice — Determines whether the cure period ran before August 26 and whether the lease remedy had matured.
- [high] Trinity Mechanical invoice, service report, and proof of payment — Substantiates the $8,400 claim and what the unit serves.
- [high] Photograph or copy of the posted lockout notice and any written key-release demand — Proves the content of the notice and the condition attached to the new key.
- [medium] Exhibits B and C to the lease — Could contain fee schedules or guaranty terms affecting the fee and the guarantor's exposure.

- [medium] Rent ledger and the 2024 operating-expense reconciliation — Establishes the true balance between the parties and any CAM over- or under-payment.
- [low] HVAC preventive maintenance records — Relevant to whether Tenant complied with Section 7.2 and to causation of the compressor failure.

Unverified claims

- That Tenant paid Trinity Mechanical $8,400 on July 3, 2025 (no invoice or proof of payment in the file).
- That the certified letter was never received (Tenant's statement only).
- That the key-release condition included the $1,500 fee (Tenant's account of a telephone call, partly corroborated by Landlord's reply).
- That Texas common law would or would not permit withholding despite the independent-covenant clause (no authority in the local library).

11. Time-Sensitive Concerns

- As soon as possible after the August 26, 2025 lockout; no fixed statutory deadline is stated in the library text: A sworn complaint for reentry under Property Code Section 93.003 is the statutory route to regain possession quickly; it requires filing in the justice court for the precinct where the premises are located and an oral statement under oath. Delay reduces its practical value and perishable inventory remains inside. (basis: documented) [A:tx-prop-93.003]
- Within 1 to 7 days after any landlord hearing request: If Landlord requests a hearing on a writ of reentry, the hearing must be held between the first and seventh day after the request; the tenant must be ready to present evidence on short notice. (basis: documented) [A:tx-prop-93.003]
- 2025-09-01 and the first of each month thereafter: Rent and late charges continue to accrue monthly under the lease while the dispute is unresolved; September rent would be due September 1, 2025. (basis: inference) [D1:p2]
- 60 days after surrender and forwarding-address notice: If the lease is terminated and the premises surrendered, the landlord must account for and return the security deposit within 60 days after surrender and written notice of a forwarding address. (basis: documented) [A:tx-prop-93.005]

Practical considerations (informational, not legal advice)

- The amount in dispute for August is $7,717.50 as claimed by Landlord, against Tenant's claimed $8,400 credit; the net difference is small relative to the cost of losing possession, which an attorney may weigh when discussing options.
- Tenant's contemporaneous August 26 email is currently the only record of the fee demand; preserving all communications, photographs, and call logs is important.
- The guarantor is named personally in the lease; counsel should review the guaranty before any negotiation.
- Both sides have attorney's-fee exposure under the lease's prevailing-party clause and Chapter 38 of the Civil Practice and Remedies Code.

Conclusions requiring attorney review

- Whether to pursue a sworn complaint for reentry under Section 93.003 given the time sensitivity and the risk under subsection (k) for bad-faith filings.
- Whether Texas case law permits any withholding of rent despite an express independent-covenant clause.
- Interpretation of the Section 1.10 / Section 7.2 conflict and the role of extrinsic evidence.
- Exposure of the guarantor under Exhibit C, which was not reviewed.

12. Questions to Ask a Licensed Attorney

1. Should we file a sworn complaint for reentry under Property Code Section 93.003 now, and what evidence do we need at the hearing?
2. Does conditioning the new key on a $1,500 fee that is not in the lease make the lockout unlawful under Section 93.002, and what remedies follow under subsection (g)?
3. Does Section 93.002(h), which lets a lease supersede the statute, change the analysis given that Section 15.2(c) of our lease incorporates Section 93.002?
4. How would a Texas court likely resolve the conflict between Section 1.10 (Building Systems including rooftop equipment) and Section 7.2 (HVAC exclusively serving the Premises), and what extrinsic evidence would matter?
5. Given Sections 4.4 and 7.4, was there any lawful way to recover the $8,400 other than invoicing and suing, and how should we present the reimbursement claim now?
6. If Landlord cannot produce a certified mail receipt, did the ten-day cure period ever start, and who bears the burden of proving mailing under Section 17.1?
7. Does Tenant's reference to 'the August 11 email attachment' count as a written acknowledgment that converts the email into notice under Section 17.2?
8. What is the exposure of the personal guarantor, and should we request Exhibit C before negotiating?
9. Should we tender the undisputed rent now to limit damages and strengthen the reentry request, and how should the tender be worded?
10. Is there a claim for lost business during the June outage, and what records would support it?

13. Evidence References and Source Appendix

Documents in this case

Ref	File	Type	Pages/segments	SHA-256
D1	01_commercial_lease.pdf	lease	6 / 6	cb7db3ad7777fdb2…
D2	02_notice_of_default.docx	notice	— / 17	532370d29fc7cce8…
D3	03_email_chain.docx	communication	— / 49	c18af2b0e9ef024e…

Cited passages

[A:none] — no_evidence

> (authority id is not in the local library — rejected)

[A:tx-cprc-38.001] — verified — Tex. Civ. Prac. & Rem. Code § 38.001: Recovery Of Attorney's Fees

> Sec. 38.001. RECOVERY OF ATTORNEY'S FEES. (a) In this section, "organization" has the meaning assigned by Section 1.002, Business Organizations Code.
> (b) A person may recover reasonable attorney's fees from an individual or organization other than a quasi-governmental entity authorized to perform a function by state law, a religious organization, a charitable organization, or a charitable trust, in addition to the amount of a valid claim and costs, if the claim is for:
> (1) rendered services;
> (2) performed labor;
> (3) furnished material;
> (4) freight or express overcharges;
> (5) lost or damaged freight or express;
> (6) killed or injured stock;
> (7) a sworn account; or
> (8) an oral or wr

[A:tx-prop-24.005] — verified — Tex. Prop. Code § 24.005: Notice Required Before Filing Certain Eviction Suits

> Sec. 24.005. NOTICE REQUIRED BEFORE FILING CERTAIN EVICTION SUITS. (a) If the occupant is a tenant under a written lease or oral rental agreement, the landlord must give a tenant who defaults or holds over beyond the end of the rental term or renewal period at least three days' written notice to vacate the premises before the landlord files a forcible detainer suit, unless the parties have contracted for a shorter or longer notice period in a written lease or agreement. In a forcible detainer suit against a tenant whose right of possession is terminated based solely on nonpayment of rent and who was not late or delinquent in paying rent to the landlord before the month in which the notic

[A:tx-prop-91.004] — verified — Tex. Prop. Code § 91.004: Landlord's Breach Of Lease; Lien

> Sec. 91.004. LANDLORD'S BREACH OF LEASE; LIEN. (a) If the landlord of a tenant who is not in default under a lease fails to comply in any respect with the lease agreement, the landlord is liable to the tenant for damages resulting from the failure.
> (b) To secure payment of the damages, the tenant has a lien on the landlord's nonexempt property in the tenant's possession and on the rent due to the landlord under the lease.
>
> Acts 1983, 68th Leg., p. 3627, ch. 576, Sec. 1, eff. Jan. 1, 1984.

[A:tx-prop-93.002] — verified — Tex. Prop. Code § 93.002: Interruption Of Utilities, Removal Of Property, And Exclusion Of Commercial Tenant

Sec. 93.002. INTERRUPTION OF UTILITIES, REMOVAL OF PROPERTY, AND EXCLUSION OF COMMERCIAL TENANT. (a) A landlord or a landlord's agent may not interrupt or cause the interruption of utility service paid for directly to the utility company by a tenant unless the interruption results from bona fide repairs, construction, or an emergency.
(b) A landlord may not remove a door, window, or attic hatchway cover or a lock, latch, hinge, hinge pin, doorknob, or other mechanism connected to a door, window, or attic hatchway cover from premises leased to a tenant or remove furniture, fixtures, or appliances furnished by the landlord from premises leased to a tenant unless the landlord removes the it

[A:tx-prop-93.003] — verified — Tex. Prop. Code § 93.003: Commercial Tenant's Right Of Reentry After Unlawful Lockout

Sec. 93.003. COMMERCIAL TENANT'S RIGHT OF REENTRY AFTER UNLAWFUL LOCKOUT. (a) If a landlord has locked a tenant out of leased premises in violation of Section 93.002, the tenant may recover possession of the premises as provided by this section.
(b) The tenant must file with the justice court in the precinct in which the rental premises are located a sworn complaint for reentry, specifying the facts of the alleged unlawful lockout by the landlord or the landlord's agent. The tenant must also state orally under oath to the justice the facts of the alleged unlawful lockout.
(c) If the tenant has complied with Subsection (b) and if the justice reasonably believes an unlawful lockout has l

[A:tx-prop-93.005] — verified — Tex. Prop. Code § 93.005: Obligation To Refund Security Deposit

Sec. 93.005. OBLIGATION TO REFUND SECURITY DEPOSIT. (a) The landlord shall refund the security deposit to the tenant not later than the 60th day after the date the tenant surrenders the premises and provides notice to the landlord or the landlord's agent of the tenant's forwarding address under Section 93.009.
(b) The tenant's claim to the security deposit takes priority over the claim of any creditor of the landlord, including a trustee in bankruptcy.

Added by Acts 2001, 77th Leg., ch. 1460, Sec. 1, eff. Sept. 1, 2001. Amended by Acts 2003, 78th Leg., ch. 1143, Sec. 1, eff. Sept. 1, 2003.

[A:tx-prop-93.012] — verified — Tex. Prop. Code § 93.012: Assessment Of Charges

Sec. 93.012. ASSESSMENT OF CHARGES. (a) A landlord may not assess a charge, excluding a charge for rent or physical damage to the leased premises, to a tenant unless the amount of the charge or the method by which the charge is to be computed is stated in the lease, an exhibit or attachment that is part of the lease, or an amendment to the lease.
(b) This section does not affect a landlord's right to assess a charge or obtain a remedy allowed under a statute or common law.
(c) This section does not affect the contractual right of a landlord that is a governmental entity created under Subchapter D, Chapter 22, Transportation Code, whose constituent municipalities are populous home-rule m

[D1:p1] — verified — 01_commercial_lease.pdf (ARTICLE 1. BASIC LEASE INFORMATION AND DEFINITIONS; ARTICLE 2. PREMISES AND TERM)

RETAIL LEASE AGREEMENT
Ridgmar Crossing — Suite 140
This Retail Lease Agreement (this "Lease") is entered into between Ridgmar Crossing Partners, LP ("Landlord") and Brazos Bend Coffee Roasters, LLC ("Tenant") as of the Commencement Date stated in Article 1. SYNTHETIC DOCUMENT FOR SOFTWARE TESTING — ALL PARTIES, ADDRESSES, AND EVENTS ARE FICTIONAL.
ARTICLE 1. BASIC LEASE INFORMATION AND DEFINITIONS
1.1 Landlord: Ridgmar Crossing Partners, LP, a Texas limited partnership, 4100 Hulen Street, Suite 300, Fort Worth, Texas 76107.
1.2 Tenant: Brazos Bend Coffee Roasters, LLC, a Texas limited liability company.
1.3 Premises: approximately 1,850 rentable square feet known as Suite 140, 6300 Camp Bow…

[D1:p2] — verified — 01_commercial_lease.pdf (ARTICLE 4. RENT; ARTICLE 7. MAINTENANCE AND REPAIRS; ARTICLE 9. OPERATING EXPENSES)

> ARTICLE 4. RENT
> 4.1 Payment of Rent. Tenant shall pay Base Rent and Tenant's Share of Operating Expenses in advance on or before the first (1st) day of each calendar month, without demand, deduction, abatement, or offset, except as expressly provided in this Lease.
> 4.2 Place of Payment. Rent shall be paid to Landlord at the address stated in Section 1.1 or by electronic transfer to an account designated by Landlord in writing.
> 4.3 Late Charge. If any installment of Rent is not received within five (5) days after the date due, Tenant shall pay a late charge equal to five percent (5%) of the overdue amount. The parties agree that the late charge represents a fair and reasonable estimate of the…

[D1:p4] — verified — 01_commercial_lease.pdf (ARTICLE 15. DEFAULT AND REMEDIES; ARTICLE 17. NOTICES)

> ARTICLE 15. DEFAULT AND REMEDIES
> 15.1 Events of Default. Each of the following constitutes an "Event of Default": (a) Tenant fails to pay any Rent when due and such failure continues for ten (10) days after Landlord gives Tenant written notice thereof; (b) Tenant fails to perform any other obligation under this Lease and such failure continues for thirty (30) days after written notice from Landlord; (c) Tenant abandons the Premises; or (d) Tenant becomes insolvent or files a petition in bankruptcy.
> 15.2 Landlord's Remedies. Upon an Event of Default, Landlord may, in addition to all other rights and remedies available at law or in equity: (a) terminate this Lease by written notice to Tenant; …

[D1:p5] — verified — 01_commercial_lease.pdf (ARTICLE 21. SECURITY DEPOSIT; ARTICLE 24. MISCELLANEOUS)

> ARTICLE 21. SECURITY DEPOSIT
> 21.1 Deposit. Tenant has deposited the Security Deposit with Landlord as security for Tenant's performance. Landlord may apply the Security Deposit to cure any Event of Default, in which event Tenant shall restore the Security Deposit within ten (10) days after demand.
> 21.2 Return. Landlord shall return the unapplied balance of the Security Deposit, together with a written itemization of any deductions, within sixty (60) days after Tenant surrenders the Premises and provides Landlord written notice of Tenant's forwarding address.
> ARTICLE 24. MISCELLANEOUS
> 24.1 Governing Law; Venue. This Lease is governed by the laws of the State of Texas. Venue for any action ari…

[D2:para10] — verified — 02_notice_of_default.docx (Re: NOTICE OF DEFAULT — Retail Lease Agreement dated as of March 1, 2023 (the "Lease"), Suite 140, Ridgmar Crossing)

> This letter constitutes written notice under Section 15.1(a) of the Lease that Tenant is in default for failure to pay Rent. Tenant failed to pay the Base Rent of $6,250.00 and Tenant's Share of Operating Expenses of $1,100.00 due on August 1, 2025, for a total of $7,350.00. A late charge of $367.50 has accrued under Section 4.3. The total amount now due is $7,717.50.

[D2:para12] — verified — 02_notice_of_default.docx (Re: NOTICE OF DEFAULT — Retail Lease Agreement dated as of March 1, 2023 (the "Lease"), Suite 140, Ridgmar Crossing)

> Unless the total amount due is received by Landlord within ten (10) days after the date of this notice, an Event of Default will exist and Landlord intends to exercise its remedies under Section 15.2 of the Lease, including without limitation changing the door locks pursuant to Section 93.002 of the Texas Property Code, and will pursue all amounts due from Tenant and Guarantor.

[D2:para3] — verified — 02_notice_of_default.docx (Ridgmar Crossing Partners, LP)

> August 11, 2025

[D2:para4] — verified — 02_notice_of_default.docx (Ridgmar Crossing Partners, LP)

> VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED, AND ELECTRONIC MAIL

[D3:para12] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> Marisol, I have asked our rooftop vendor, Trinity Mechanical, to take a look. Please note that under the lease the HVAC for your suite is a tenant item, so any repair cost will be billed back to you. I will let you know what they find.

[D3:para18] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> Trinity Mechanical's report says the compressor on the 7.5-ton rooftop unit serving Suite 140 has failed and the unit is at end of life. Replacement estimate is $8,400. Per Section 7.2 this is Tenant's responsibility. Please arrange the replacement with a licensed contractor and send us a copy of the preventive maintenance contract required by the lease.

[D3:para24] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> I disagree. That rooftop unit is part of the building's mechanical system and the lease says Landlord maintains the Building Systems, including rooftop equipment. We have been without cooling for eleven days in June and have lost most of our afternoon business. We are going ahead with the replacement through Trinity Mechanical because we cannot wait any longer, and we expect Landlord to reimburse us. Consider this our written notice.

[D3:para30] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> Dana, Trinity Mechanical completed the replacement on June 27 and we paid their invoice of $8,400 on July 3. Since Landlord has not responded to our June 21 email or reimbursed us, we are applying the $8,400 against August rent and CAM ($7,350). The remaining $1,050 credit should be applied to September. Please confirm.

[D3:para42] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> We arrived this morning at 6:30 AM to open and found the locks changed. A paper notice taped to the front door reads: "NOTICE: The locks to these premises have been changed for non-payment of rent. To obtain a new key contact Ridgmar Crossing Management at (817) 555-0142 during regular business hours." When I called, I was told a new key would be released only after payment of $7,717.50 plus a $1,500.00 "lockout and administrative fee". There is no lockout fee anywhere in our lease. We have 240 pounds of green coffee and perishable inventory inside and employees scheduled to work. We never received any certified letter; the only notice we saw was the August 11 email attachment. We demand imm…

[D3:para48] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> Ms. Delgado-Pruitt, the notice of default was sent by certified mail on August 11 and the ten-day cure period expired on August 21. The lockout is authorized by Section 15.2(c) of the lease and Texas law. The administrative fee covers the locksmith and our staff time. Keys will be released upon payment in full. Any claim regarding the HVAC unit should be addressed separately.

[D3:para6] — verified — 03_email_chain.docx (Email Correspondence — Suite 140 HVAC and Lockout (printed by Tenant))

> Dana, the rooftop AC unit for our suite stopped cooling overnight. It is already 84 degrees inside at 9 AM and we cannot run the roaster or serve customers safely in these temperatures. Please send someone today. This is urgent.

14. Research and Verification Metadata

Verification checks: 93 total, 88 verified, 5 failed (0 material). Fabricated authority references rejected: 0. Unsupported findings: 0.

Unresolved verification findings

Finding	Ref	Status	Detail
knowledge.facts.F7		consistency_warning	Amounts/dates in the finding were not found in the cited passages: July 3, 2025
knowledge.facts.F9		consistency_warning	Amounts/dates in the finding were not found in the cited passages: August 11, 2025
knowledge.candidate_authorities.8	A:none	no_evidence	Authority not in local library; treat the legal proposition as unverified.
knowledge.candidate_authorities.9	A:none	no_evidence	Authority not in local library; treat the legal proposition as unverified.
senior_partner.time_sensitive_concerns.3		consistency_warning	Amounts/dates in the finding were not found in the cited passages: 2025-09-01

Limitation: Verification confirms that citations resolve to stored text and that quotes match. It does not confirm that a statute is current, remains good law, or applies to these facts.

Limitation: The authority library contains Texas statutes only; rules of procedure, case law, and local rules are absent, so references to them are reported as unverified.

Limitation: Contradiction detection is limited to numeric/date consistency between a fact and its cited passage plus the skeptical reviewer's findings.

Inference provider: scripted (SCRIPTED TEST FIXTURE); model: fixture:default; argument style: by_the_book; run: run_6f819b3bbf3e6182d35f38cec1150170; authority library size: 36 sections.

Stage extraction_check: attempts 1, 1 ms, tokens in/out None/None, session —

Stage knowledge: attempts 1, 62 ms, tokens in/out 12764/5647, session lgl-7af7227b-knowledge-7877a4b695e4c9cc

Stage advocate_customer: attempts 1, 54 ms, tokens in/out 13990/2139, session lgl-7af7227b-advocate_customer-eab2fc14ea871326

Stage advocate_opposing: attempts 1, 61 ms, tokens in/out 13990/1666, session lgl-7af7227b-advocate_opposing-657c964925bb1029

Stage judge: attempts 1, 54 ms, tokens in/out 17810/2322, session lgl-7af7227b-judge-3af8e43fae82b4b8

Stage senior_partner: attempts 1, 56 ms, tokens in/out 20140/2718, session lgl-7af7227b-senior_partner-ef26ed64dad99aca

Stage verification: attempts 1, 27 ms, tokens in/out None/None, session —

Review: approved by Acceptance Operator at 2026-10-31T20:52:19+00:00; note: Acceptance run